STATE OF WISCONSIN
IN SUPREME COURT

No. 2023AP001399-OA

REBECCA CLARKE, RUBEN ANTHONY, TERRY DAWSON, DANA GLASSTEIN, ANN GROVES-LLOYD, CARL HUJET, JERRY IVERSON, TIA JOHNSON, ANGIE KIRST, SELIKA LAWTON, FABIAN MALDONADO, ANNEMARIE MCCLELLAN, JAMES MCNETT, BRITTANY MURIELLO, ELA JOOSTEN (PARI) SCHILS, NATHANIEL SLACK, MARY SMITH-JOHNSON, DENISE (DEE) SWEET, AND GABRIELLE YOUNG, GOVERNOR TONY EVERS, IN HIS OFFICIAL CAPACITY; NATHAN ATKINSON, STEPHEN JOSEPH WRIGHT, GARY KRENZ, SARAH J. HAMILTON, JEAN-LUC THIFFEAULT, SOMESH JHA, JOANNE KANE, AND LEAH DUDLEY,
Petitioners, Intervenors-Petitioners,

v.

WISCONSIN ELECTIONS COMMISSION; DON MILLIS, ROBERT F. SPINDELL, JR., MARK L. THOMSEN, ANN S. JACOBS, MARGE BOSTELMANN, AND JOSEPH J. CZARNEZKI, IN THEIR OFFICIAL CAPACITIES AS MEMBERS OF THE WISCONSIN ELECTIONS COMMISSION; MEAGAN WOLFE, IN HER OFFICIAL CAPACITY AS THE ADMINISTRATOR OF THE WISCONSIN ELECTIONS COMMISSION; SENATORS ANDRÉ JACQUE, TIM CARPENTER, ROB HUTTON, CHRIS LARSON, DEVIN LEMAHIEU, STEPHEN L. NASS, JOHN JAGLER, MARK SPREITZER, HOWARD L. MARKLEIN, RACHAEL CABRAL-GUEVARA, VAN H. WANGGAARD, JESSE L. JAMES, ROMAINE ROBERT QUINN, DIANNE H. HESSELBEIN, CORY TOMCZYK, JEFF SMITH, AND CHRIS KAPENGA, IN THEIR OFFICIAL CAPACITIES AS MEMBERS OF THE WISCONSIN SENATE; WISCONSIN LEGISLATURE; BILLIE JOHNSON, CHRIS GOEBEL, ED PERKINS, ERIC O'KEEFE, JOE SANFELIPPO, TERRY MOULTON, ROBERT JENSEN, RON ZAHN, RUTH ELMER, AND RUTH STRECK,
Respondents, Intervenors-Respondents.

MOTION FOR RECONSIDERATION BY INTERVENORS-RESPONDENTS WISCONSIN LEGISLATURE, JOHNSON, GOEBEL, PERKINS, O'KEEFE, SANFELIPPO, MOULTON, JENSEN, ZAHN, ELMER, AND STRECK AND RESPONDENTS SENATORS CABRAL-GUEVARA, HUTTON, JACQUE, JAGLER, JAMES, KAPENGA, LEMAHIEU, MARKLEIN, NASS, QUINN, TOMCZYK, AND WANGGAARD

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Intervenor-Respondent Wisconsin Legislature, through its counsel, Respondents Senators Rachael Cabral-Guevara, Rob Hutton, Andre Jacque, John Jagler, Jesse L. James, Chris Kapenga, Devin LeMahieu, Howard L. Marklein, Stephen L. Nass, Romaine Robert Quinn, Cory Tomczyk, and Van H. Wanggaard (the Respondent Senators), through their counsel, and Intervenors-Respondents Billie Johnson, Chris Goebel, Ed Perkins, Eric O'Keefe, Joe Sanfelippo, Terry Moulton, Robert Jensen, Ron Zahn, Ruth Elmer, and Ruth Streck (the Johnson Respondents), through their counsel, respectfully move for reconsideration of the Court's opinion issued December 22, 2023, *Clarke v. Wis. Elections Comm'n*, 2023 WI 79, and the accompanying remedial scheduling order, Order, *Clarke v. Wis. Elections Comm'n*, No. 2023AP1399-OA (Dec. 22, 2023), pursuant to Wis. Stat. §§809.14 and 809.64. For the reasons stated in the accompanying memorandum of law, the Court's opinion and remedial scheduling order should be reconsidered and all proceedings should be stayed pending a decision on this motion.

\1. Reconsideration of the Court's opinion and order is warranted for several independent reasons.

\2. First, the Court's opinion and remedial scheduling order fail to give the Legislature a reasonable opportunity to redistrict and apply the Court's newfound contiguity rules, contrary to controlling legal precedent and important policy considerations.

\3. Second, the Court's opinion and remedial scheduling order is largely silent on Respondents' arguments, completely silent on 160 pages of dissents, and incompatible with state and federal law. The failure to meaningfully consider Respondents' arguments confirms this case has been pre-decided. Among other errors, the Court erroneously dismissed the Legislature's due process arguments as "underdeveloped." The Court's remedial schedule, moreover, does not give the parties a full and fair opportunity to litigate this case, denying them the most basic features of civil process. And the Court's remedial schedule denies the parties fair notice and an opportunity to be heard on proposed remedies.

\4. Third, the Court's remedial schedule leaves insufficient time before 2024 election deadlines commence.

\5. Respondents request that all proceedings be stayed pending a decision on this motion, thereby deferring substantial expenses for the parties and the Court-appointed consultants. See Wis. Stat. §809.14(3).

WHEREFORE, the Wisconsin Legislature, the Respondent Senators, and the Johnson Respondents request that the Court's opinion and remedial scheduling order be reconsidered and that all proceedings be stayed pending a decision on this motion.

December 28, 2023

Signed:

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Jessie Augustyn
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Marklein, Nass, Quinn, Tomczyk &
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